

Court No. - 2

Case :- WRIT - C No. - 43080 of 2011

Petitioner :- M/S M.D. Plastic (A Proprietorship Concern)

Respondent :- Kanpur Electricity Supply Co. And Another

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Mridul Tripathi

Hon'ble Ashok Bhushan,J.

Hon'ble Bharati Sapru,J.

Heard learned counsel for the petitioner and Smt. Mridul Tripathi, learned counsel appearing for the respondents.

Learned counsel for the petitioner contends that the petitioner has been regularly paying his bill and suddenly on 13.7. 2011 a bill amounting to Rs. 31,73,973/- has been issued alleging to be difference of the bill amount from April 2010 to June 2011 on the ground of CT reverse .

Learned counsel for the petitioner submits that the respondents were required to follow the procedure as provided under the provisions of Clause 5.6 of the U.P. Electricity supply Code 2005. Without adhering to the said provision the bill has been issued which not sustainable.

Learned counsel for the respondents submits that the said CT could be detected on the study MRI checking , hence the bill has rightly been raised.

The respondents are allowed three weeks time to file counter affidavit.

List thereafter.

The Executive Engineer, respondent no.2 shall file his personal affidavit to the allegations made in the writ petition.

Subject the petitioner deposits an amount of Rs. 10.00 lacs with the respondent no.2, the electricity supply of the petitioner shall be restored. The petitioner shall pay the future bill as and when it falls due.

Order Date :- 3.8.2011

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Court No. - 29

Case :- WRIT - C No. - 43080 of 2011

Petitioner :- M/S M.D. Plastic A Proprietorship Concern

Respondent :- Kanpur Electricity Supply Co. And Another

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- Mridul Tripathi,S.C.

Hon'ble Pritinker Diwaker,J.

Hon'ble Ashutosh Srivastava,J.

Sri B. C. Rai, learned counsel for the petitioner. None for the respondents.

List this case in the second week of January, 2022.

Order Date :- 22.12.2021

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Court No. - 40

Case :- WRIT - C No. - 43080 of 2011

Petitioner :- M/S M.D. Plastic A Proprietorship Concern

Respondent :- Kanpur Electricity Supply Co. And Another

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- Anubhav Singh,S.C.

Hon'ble Saral Srivastava,J.

Hon'ble Arun Kumar Singh Deshwal,J.

Sri B.C.Rai, learned counsel for the petitioner states that the present petition has wrongly been connected with Writ-C No.6249 of 2012 inasmuch as there is no issue common in both the writ petitions. Accordingly, the present writ petition is de-linked from Writ-C No.6249 of 2012.

Office is directed to list both the petitions separately.

List on **18.08.2025**

Order Date :- 4.8.2025

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(Arun Kumar Singh Deshwal,J) (Saral Srivastava,J.)



2025:AHC:153410-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 43080 of 2011

M/S M.D. Plastic A Proprietorship Concern

.....Petitioner(s)

Versus

Kanpur Electricity Supply Co. And Another

.....Respondent(s)

Counsel for Petitioner(s)

: B.C. Rai

Counsel for Respondent(s)

: Anubhav Singh, S.C.

Court No. - 21

HON'BLE MANOJ KUMAR GUPTA, J.

HON'BLE RAM MANOHAR NARAYAN MISHRA, J.

1. This case is listed under the caption 'Oldest Pending Cases in this High Court, for Priority Hearing'.
2. None present to press the petition.
3. **Dismissed** for want of prosecution.

(Ram Manohar Narayan Mishra,J.) (Manoj Kumar Gupta,J.)
September 1, 2025

Ankit.



HIGH COURT OF JUDICATURE AT ALLAHABAD
WRIT - C No. - 43080 of 2011

M/S M.D. Plastic A Proprietorship Concern

.....Petitioner(s)

Versus

Kanpur Electricity Supply Co. And Another

.....Respondent(s)

Counsel for Petitioner(s)	:	B.C. Rai
Counsel for Respondent(s)	:	Anubhav Singh, S.C.

Court No. - 29

HON'BLE MAHESH CHANDRA TRIPATHI, J.
HON'BLE ANISH KUMAR GUPTA, J.

In Re: Civil Misc. Restoration/Recall Application No. 8 of 2025.

1. Heard learned counsel for the parties.
2. The instant application has been filed seeking recall of the order dated 1.9.2025 whereby the writ petition was dismissed for non-prosecution.
3. Cause shown in the affidavit found sufficient.
4. Accordingly, the recall application is allowed. The order dated 1.9.2025 is recalled and the writ petition is restored to its original number.

Order on Writ Petition

5. Sri B.C. Rai, learned counsel for the petitioner submits that in compliance of the interim order dated 3.8.2011, petitioner had deposited Rs. 10 lakhs with the respondent no. 2 and is regularly paying the electricity dues.
6. As prayed, list this matter in the week commencing 13.10.2025.
7. Interim order, granted earlier, is extended till the next date of listing.

(Anish Kumar Gupta,J.) (Mahesh Chandra Tripathi,J.)
September 24, 2025/Kirti



HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 43080 of 2011

M/S M.D. Plastic A Proprietorship Concern

.....Petitioner(s)

Versus

Kanpur Electricity Supply Co. And Another

.....Respondent(s)

Counsel for Petitioner(s)	:	B.C. Rai
Counsel for Respondent(s)	:	Anubhav Singh, S.C.

Court No. - 29

HON'BLE MAHESH CHANDRA TRIPATHI, J.
HON'BLE KUNAL RAVI SINGH, J.

As prayed, list in the next cause list.

(Kunal Ravi Singh,J.) (Mahesh Chandra Tripathi,J.)
October 13, 2025
Pkb/